Prithviraj Daukiya @ Prince Godara vs State on 5 March, 2025

Author: Swarana Kanta Sharma

Bench: Swarana Kanta Sharma

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
\+ BAIL APPLN. 620/2025
PRITHVIRAJ DAUKIYA @ PRINCE GODARA .....
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HON'BLE MS. JUSTICE SWARANA KANTA SHARMA
OR

% 05.03.2025

1. By way of present application, the applicant is seeking grant of regular bail in case arising out of FIR bearing no. 37/2024, registered at Police Station Dwarka, Delhi, for offences punishable under Sections 420/120B/34 of the Indian Penal Code, 1860 (hereafter „IPC').

2. Briefly stated, the facts of the present case are that the FIR came to be registered in this case on the complaint of one Mohinder Singh Grover alleging online fraud to the tune of Rs. 45,00,000/- on the pretext of high returns by way of online share trading. Investigation revealed that on 23.04.2023, the complainant had transferred an amount of Rs.10,000/- under inducement that he will receive high returns, to alleged beneficiary ICICI A/C No. 721405500212, IFSC Code ICIC0007214 (Autonome) of Branch Murlipura Jaipur, Rajasthan as initial payment, which belongs to co-accused This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 15/03/2025 at 00:30:18 Sachin Mawaliya as he is the proprietor of said company/firm. On 09.12.2024, co-accused Sachin Mawaliya was arrested. Further investigation led to co-accused Rahul Godara who informed the police that he had shared the current account details of Autonome firm including SIM No. 722982207 in good faith to one of his friends namely Prithviraj Daukiya @ Prince, who is the present applicant. He had also handed over to the Investigating Officer (IO), the extract of the WhatsApp chat with the present accused/applicant wherein he had asked him to share his

identification details and password of net banking linked to current account of Autonome Firm (ICICI A/C No. 721405500212). During further course of investigation, the present accused/applicant was arrested. During police custody remand, the present accused/applicant had produced SIM no. 7229822207, which is linked to current account of Autonome Firm. During the course of further investigation, on 14.01.2025, the voice recording and transcript of conversation between the present applicant along with co-accused Rahul Godara was handed over to the I.O. The investigation revealed that the present applicant along with co-accused Amit Chaudhary had shared the details of Autonome Firm with one Abbas on promise of getting commission of Rs.80,000/-, who used to meet him at a tea stall at Mahesh Nagar Mor, Jaipur and he does not know about his whereabouts. Further, he had disclosed to the IO that he had destroyed his mobile phone by throwing it in a water tank to destroy evidence.

3. The learned counsel appearing on behalf of the applicant argues that the present applicant has been falsely implicated in the present case. It is also argued that no amount was received in the bank account of the present applicant and there is no material on record to connect the applicant with the This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 15/03/2025 at 00:30:18 alleged offence. It is also argued that the co-accused has already been enlarged on bail. Therefore, it is prayed that applicant be released on regular bail.

4. The learned APP appearing for the State, on the other hand, argues that the bank details of the present accused/applicant were investigated, which has revealed suspicious transactions. It is argued that during the course of investigation, call detail record was analysed and the accused was found in touch with the SIM no. 7229822207 (Linked with Autoome Firm) from his personal mobile number 8769557081 since it was delivered to him on 21.03.2024, by co-accused Rahul Godara. The learned APP also argues that the present accused/applicant has placed a crucial role in the entire conspiracy in committing online fraud and that he is also involved in two previous cases of similar nature i.e. (i) one registered at Police Station Murlipur, Jaipur vide FIR No. 522/2023, under Sections 406/420 of IPC and

(ii) another registered at Police Station Cyber Crime, Jaipur Secretariat vide FIR No. 28/2023, under Section 420 of IPC. Therefore, it is prayed that bail application be rejected.

5. This Court has heard arguments addressed by the leaned counsel for the applicant as well as the learned APP for the State and has perused the material available on record.

6. After hearing arguments and going through the case file, this Court is of the opinion that the material placed on record reveals that the accused herein had facilitated in obtaining the current account details, including SIM No. 7229822207 linked to ICICI current A/C No. 721405500212 (Autonome) from one Rahul Godara and further sold it to one Abbas. In the said account, Rs.10,000/- were transferred by complainant/victim on This is a digitally signed order.

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7. This Court also notes that chargesheet has yet not been filed in this case. Considering that innocent persons have been cheated of their hard earned money in an online fraud by inducing and manipulating bank accounts on promise of higher returns, adds to the gravity of the offence.

8. The learned APP for the State, during the course of arguments, also handed over to the Court, the transcript of the conversations between the present accused/applicant and co-accused Rahul Godara wherein he can also be seen threatening and admitting his role in the alleged offence.

9. Therefore, considering the overall facts and circumstances of the present case, this Cout is not inclined to grant regular bail to the present accused/applicant, at this stage.

10. Accordingly, the present application for grant of regular bail stands This is a digitally signed order.

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11. It is, however, clarified that nothing expressed herein above shall tantamount to an expression of opinion on merits of the case.

12. The order be uploaded on the website forthwith.

SWARANA KANTA SHARMA, J MARCH 5, 2025/zp Click here to check corrigendum, if any This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 15/03/2025 at 00:30:19